

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Tuminello	Team: Squad #15	CCRB Case #: 201603762	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 04/20/2016 1:30 AM	Location of Incident: At the 73rd Precinct stationhouse and in front of the 73rd Precinct stationhouse.	18 Mo. SOL 10/20/2017	Precinct: 73
Date/Time CV Reported Sun, 05/01/2016 2:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/01/2016 2:38 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Jay Santana	00000	904993	073 PCT
2. SGT Thomas Maffei	04479	942096	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Dandraia	26819	957510	073 PCT
2. POM Matthew Arvelo	18621	954505	073 PCT
3. POM Ivan Rodriguez	21064	959411	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Thomas Maffei	Abuse: At the 73rd Precinct stationhouse, Sergeant Thomas Maffei did not process § 87(2)(b)'s complaint regarding an officer.	A . Unsubstantiated
B . LT Jay Santana	Discourtesy: In front of the 73rd Precinct stationhouse, Lieutenant Jay Santana spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . LT Jay Santana	Force: In front of the 73rd Precinct stationhouse, Lieutenant Jay Santana used physical force against § 87(2)(b)	C . Exonerated

Case Summary

On April 20, 2016, at approximately 1 a.m., § 87(2)(b) stated that he was dropping his friend off at home while in the confines of the 73rd Precinct in Brooklyn. He alleged that upon dropping of his friend, he stopped at an intersection and spoke to two officers in plainclothes. At approximately 2:45 a.m., § 87(2)(b) arrived at the 73rd Precinct stationhouse and went to the main desk to file a complaint in regards to his conversation he had with the officers at the intersection. § 87(2)(b) stated to an officer identified by the investigation as Sgt. Thomas Maffei of the 73rd Precinct that he wanted to file a complaint. Sgt. Maffei allegedly pointed to the CCRB's telephone number on the wall and stated that they do not take complaints at the stationhouse (**Allegation A**).

§ 87(2)(b) walked outside of the stationhouse and he talked to an officer, identified by the investigation as PO Ivan Rodriguez of the 73rd Precinct, about the community, the police and statistics. As he spoke with PO Rodriguez, a marked SUV pulled up in front of the stationhouse and an officer, identified by the investigation as Lt. Jay Santana, allegedly stated to PO Rodriguez, "Who the hell is this?" § 87(2)(b) responded to Lt. Santana that he was an activist in the community and was at the command to make a complaint and educating officers. Lt. Santana began to laugh and § 87(2)(b) began to challenge Lt. Santana's knowledge of the 14th Amendment. § 87(2)(b) allegedly stated to Lt. Santana that his officers did not know the law and bet him 20 dollars that he did not know the 14th Amendment. § 87(2)(b) began to read a transcription of the 14th Amendment off of his phone and the marked SUV began to drive away. As it did Lt. Santana allegedly stated to § 87(2)(b) "Fuck you" (**Allegation B**) and § 87(2)(b) responded, "Fuck you too." The marked vehicle then stopped and Lt. Santana exited the vehicle and approached § 87(2)(b). Lt. Santana allegedly grabbed § 87(2)(b)'s right wrist, twisted it and pushed him in the mid-back with his left hand. § 87(2)(b) was allegedly pushed ten feet and his chest made contact with the marked SUV (**Allegation C**). An officer, identified by the investigation as PO Vincent D'Andraia, handcuffed § 87(2)(b).

§ 87(2)(b)'s arrest in regards to this incident was sealed. At the time of his sworn statement, § 87(2)(b) refused to sign an unsealing order authorizing the NYPD to release his arrest paperwork to the CCRB.

Mediation, Civil and Criminal Histories

- Mediation was unsuitable in regards to this case because § 87(2)(b) was arrested.
- As of May 11, 2016, § 87(2)(b) has not filed a notice of claim with the Office of the New York City Comptroller (Encl. Board Review 02)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. Board Review 01)
- St. Maffei has been a member of the service for 10 years and this is the first CCRB complaint filed against him.

- Lt. Santana has been a member of the service for 22 years and has been the subject of 9 previous CCRB allegations involving six cases and none of these allegations were substantiated. § 87(2)(g), a physical force allegation was pled against Lt. Santana in CCRB case no. 200310204 and the allegation was exonerated.

Findings and Recommendations

Allegation Not Pled

§ 87(2)(g)

Allegation A: Abuse of Authority- At the 73rd Precinct stationhouse, Sergeant Thomas Maffei did not process § 87(2)(b)'s complaint regarding an officer.

At the time of his sworn statement on May 4, 2016, § 87(2)(b) stated that on the date of the incident, he drove to the 73rd Precinct stationhouse and went to the main desk to file a complaint. § 87(2)(b) spoke to an officer whom he described as a white male in uniform. This officer was identified via investigation as Sgt. Maffei. § 87(2)(b) told Sgt. Maffei that he would like to file a complaint regarding the officers with whom he interacted with earlier in the night. Sgt. Maffei pointed to the CCRB's number on the wall and stated that they do not take complaints at the stationhouse. During his initial phone statement with the CCRB which was provided on May 1, 2016, § 87(2)(b) alleged that the officer her interacted with inside of the stationhouse provided him with the phone number to the CCRB when he asked to file a complaint

According to the 73rd Precinct Tour 1 Roll Call on April 20, 2016 (Encl. Board Review 04), Sgt. Maffei was assigned as the desk officer. A review of Sgt. Maffei's pedigree information revealed that he matches the general physical and clothing description of the subject officer as provided by § 87(2)(b). Sgt. Maffei did not have an independent recollection of an incident involving § 87(2)(b) or any other civilians entering the stationhouse to file a complaint. A review of the command log entries revealed that Sgt. Maffei did not make any entries in regards to § 87(2)(b)'s appearance at the stationhouse.

PO Matthew Arvelo was the assigned to the telephone switchboard operator on the date of the incident. He stated that if people came into the stationhouse to file a complaint regarding officers he would direct them to Sgt. Maffei. PO Arvelo stated that at no point on the date of the incident, did any civilians come into the stationhouse to file a complaint.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: In front of the 73rd Precinct stationhouse, Lieutenant Jay Santana spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that as he stood in front of the 73rd Precinct stationhouse and spoke with PO Rodriguez, a marked SUV pulled up in front of the stationhouse and Lt. Santana stated out the window of the vehicle to PO Rodriguez, “Who the hell is this?” § 87(2)(b) responded to Lt. Santana that he was an activist in the community and was at the command to make a complaint and educating officers. Lt. Santana began to laugh and § 87(2)(b) began to challenge Lt. Santana’s knowledge of the 14th Amendment. § 87(2)(b) allegedly stated to Lt. Santana that his officers did not know the law and bet him 20 dollars that he did not know the 14th Amendment. § 87(2)(b) began to read a transcription of the 14th Amendment off of his phone and the marked SUV drove off. Lt. Santana allegedly stated to § 87(2)(b) “Fuck you.”

Lt. Santana stated that he observed § 87(2)(b) talking to PO Rodriguez near the entrance doors of the stationhouse. § 87(2)(b) was yelling very loud and gesturing with his hands. Lt. Santana remained in the vehicle and asked PO Rodriguez if he knew § 87(2)(b). Lt. Santana stated that he never asked, “Who the hell is this?” and that § 87(2)(b) never stated that he was at the stationhouse to file complaint. § 87(2)(b) then walked towards the marked RMP, looked at Lt. Santana’s nameplate and stated, “Oh you Santana, oh what are you a captain?” Lt. Santana told § 87(2)(b) that he had to leave and it was time to go and § 87(2)(b) responded by stating, “You guys are dickheads.” Lt. Santana stated that at no point on the date did he state to § 87(2)(b) “Fuck you.”

PO Rodriguez stated that he spoke to § 87(2)(b) for approximately five to ten minutes before Lt. Santana arrived at the scene. § 87(2)(b) had arrived at the command upset about the Akai Gurley verdict. PO Rodriguez stated that when Lt. Santana and PO D’Andraia arrived at the stationhouse, § 87(2)(b) began to yell again about the Gurley case and the amendments of the constitution. The officers continuously asked § 87(2)(b) to leave.

PO D’Andraia stated that the officers asked § 87(2)(b) approximately three times to leave the stationhouse. § 87(2)(b) responded, “I know my fucking right and I don’t have to leave.” § 87(2)(b) s demeanor got worse and the officers decided to leave in order to de-escalate the situation. Both PO Rodriguez and PO D’Andraia both stated that at no point on the date of the incident did Lt. Santana state to § 87(2)(b) “Fuck you.”

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: In front of the 73rd Precinct stationhouse, Lieutenant Jay Santana used physical force against § 87(2)(b)

§ 87(2)(b) stated that after Lt. Santana stated to him, “Fuck you,” he responded back, “Fuck you too.” The marked SUV began to drive away and then stopped. Lt. Santana exited the vehicle and approached § 87(2)(b). Lt. Santana then grabbed his right wrist, twisted it and pushed him in the

mid-back. § 87(2)(b) stated that the push caused his body to move forward ten feet and his chest made contact with the marked SUV. PO D'Andraia then grabbed his left wrist and handcuffed him.

Lt. Santana stated that as the officers left the scene, § 87(2)(b) proceeded to stand in front of their vehicle and impede the vehicle's path. Lt. Santana and PO D'Andraia both stated to § 87(2)(b) "Why don't you just leave?" Both officers then exited the vehicle and walked towards § 87(2)(b). § 87(2)(b) stated, "Go ahead, do what you have to do" and put his hands behind his back. PO D'Andraia handcuffed § 87(2)(b) by himself without any level of resistance. Lt. Santana denied assisting PO D'Andraia in handcuffing § 87(2)(b).

PO D'Andraia stated that as he moved the marked SUV, § 87(2)(b) ran towards the police vehicle. PO D'Andraia stated that the officers exited the RMP and explained to § 87(2)(b) numerous times that if he did not leave he would be arrested. § 87(2)(b) reiterated, "I am not leaving, I know my fucking rights." PO D'Andraia grabbed § 87(2)(b)'s left arm and Lt. Santana grabbed his right arm and placed him under arrest. § 87(2)(b) was compliant and did not struggle. At no point did Lt. Santana twist § 87(2)(b)'s right wrist or push him chest first into a vehicle.

PO Rodriguez did not articulate that § 87(2)(b) got in front of or run after the police vehicle after Lt. Santana and PO D'Andraia attempted to leave the area. PO Rodriguez was unsure how long § 87(2)(b) was yelling for before Lt. Santana stated that he would be placed under arrest. He stated that Lt. Santana and PO D'Andraia grabbed each one of § 87(2)(b)'s arms and handcuffed him. PO Rodriguez stated that at no point did Lt. Santana twist § 87(2)(b)'s arm or push him into a marked SUV.

Patrol Guide Procedure 221-01 (Encl. Board Review 05) explicitly states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of department policy.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED] It is therefore recommended that **Allegation C** be closed as **exonerated**.

Squad: 15

Investigator: _____

	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date